

STATE OF NEW YORK

8131--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 1, 2025

Introduced by M. of A. KELLES -- read once and referred to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to broadband service in multi-family housing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 228 of the public service law, as added by chapter 83 of the laws of 1995, is amended to read as follows:

§ 228. Landlord-tenant relationship. 1. No landlord shall (a) interfere with the installation of cable television facilities or service provided by a recipient of the municipal assistance program as established by section sixteen-gg of the New York state urban development corporation act, as added by section 2 of part MMM of chapter fifty-eight of the laws of two thousand twenty-two upon ~~his~~ their property or premises, except that a landlord may require:

(1) that the installation of cable television facilities or service provided by a recipient of the municipal assistance program as established by section sixteen-gg of the New York state urban development corporation act, as added by section 2 of part MMM of chapter fifty-eight of the laws of two thousand twenty-two conform to such reasonable conditions as are necessary to protect the safety, functioning and appearance of the premises, and the convenience and well being of other tenants;

(2) that the cable television company or a recipient of the municipal assistance program as established by section sixteen-gg of the New York state urban development corporation act, as added by section 2 of part MMM of chapter fifty-eight of the laws of two thousand twenty-two or the tenant or a combination thereof bear the entire cost of the installation, operation or removal of such facilities; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 (3) that the cable television company or a recipient of the municipal
2 assistance program as established by section sixteen-gg of the New York
3 state urban development corporation act, as added by section 2 of part
4 MMM of chapter fifty-eight of the laws of two thousand twenty-two
5 agree to indemnify the landlord for any damage caused by the installa-
6 tion, operation or removal of such facilities.

7 (b) demand or accept payment from any tenant, in any form, in exchange
8 for permitting cable television service or service provided by a recipi-
9 ent of the municipal assistance program as established by section
10 sixteen-gg of the New York state urban development corporation act, as
11 added by section 2 of part MMM of chapter fifty-eight of the laws of two
12 thousand twenty-two on or within [~~his~~] their property or premises, or
13 from any cable television company or a recipient of the municipal
14 assistance program as established by section sixteen-gg of the New York
15 state urban development corporation act, as added by section 2 of part
16 MMM of chapter fifty-eight of the laws of two thousand twenty-two
17 in exchange therefor in excess of any amount which the commission
18 shall, by regulation, determine to be reasonable; or

19 (c) discriminate in rental charges or otherwise, between tenants who
20 receive cable television service or service provided by a recipient of
21 the municipal assistance program as established by section sixteen-gg of
22 the New York state urban development corporation act, as added by
23 section 2 of part MMM of chapter fifty-eight of the laws of two thousand
24 twenty-two and those who do not.

25 2. Rental agreements and leases executed prior to January first, nine-
26 teen hundred seventy-three may be enforced notwithstanding this section.

27 3. No cable television company or a recipient of the municipal assist-
28 ance program as established by section sixteen-gg of the New York state
29 urban development corporation act, as added by section 2 of part MMM of
30 chapter fifty-eight of the laws of two thousand twenty-two

31 may enter into any agreement with the owners, lessees or persons
32 controlling or managing buildings served by a cable television company
33 or a recipient of the municipal assistance program as established by
34 section sixteen-gg of the New York state urban development corporation
35 act, as added by section 2 of part MMM of chapter fifty-eight of the
36 laws of two thousand twenty-two, or do or permit any act, that would
37 have the effect, directly or indirectly of diminishing or interfering
38 with existing rights of any tenant or other occupant of such building to
39 use or avail [~~himself~~] themselves of master or individual antenna equip-
40 ment.

41 § 2. This act shall take effect immediately.